

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

DAVID LUNAS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
ROBERT CORRADO, Shield No. 2518, POLICE
OFFICER LAUREN DIAZ, Tax Reg. No. 941658,
DETECTIVE NICHOLAS ISOLANO, SERGEANT
EDNA SOBERAL, LIEUTENANT CLARENCE
DAWSON, Tax Reg. No. 918917 and POLICE OFFICERS
JOHN DOES #1-10 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,

Defendants.

----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 4, 2015

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Police Officer ROBERT CORRADO, Shield No. 2518, 7th Precinct, 19 ½ Pitt Street,
New York, New York 10007
Police Officer LAUREN DIAZ, Tax Reg. No. 941658, Patrol Borough Bronx, One
Police Plaza, Room 1100, New York, New York 10038
Detective NICHOLAS ISOLANO, 7th Precinct, 19 ½ Pitt Street, New York, New York
10007
Sergeant EDNA SOBERAL, 84th Precinct, 301 Gold Street, Brooklyn, New York 11201
Lieutenant CARLENCE DAWSON, Tax Reg. No. 918917, 7th Precinct, 19 ½ Pitt Street,
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

DAVID LUNAS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
ROBERT CORRADO, Shield No. 2518, POLICE
OFFICER LAUREN DIAZ, Tax Reg. No. 941658,
DETECTIVE NICHOLAS ISOLANO, SERGEANT
EDNA SOBERAL, LIEUTENANT CLARENCE
DAWSON, Tax Reg. No. 918917 and POLICE OFFICERS
JOHN DOES #1-10 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, DAVID LUNAS, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section § 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On March 11, 2013, at approximately 1:00 a.m., plaintiff, David Lunas, while lawfully present in the vicinity of 280 East Houston Street, New York, New York, was subject to an unlawful stop, frisk, search, seizure, detention, false arrest, and false imprisonment by New York City police officers. Thereafter, the defendant police officers violated plaintiff's right to due process and right to a fair trial and maliciously prosecuted plaintiff. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, strip-searched, falsely arrest, falsely imprisoned, maliciously prosecuted plaintiff and denied plaintiff the right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff DAVID LUNAS is a resident of the County of New York, State of New York.

3. Defendant Police Officer ROBERT CORRADO, Shield No. 2518, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant Police Officer ROBERT CORRADO, Shield No. 2518, was at all times relevant herein assigned to the 7th precinct.

5. Defendant Police Officer ROBERT CORRADO, Shield No. 2518, is being sued in his individual and official capacity.

6. Defendant Police Officer LAUREN DIAZ, Tax Reg. No. 941658, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant Police Officer LAUREN DIAZ, Tax Reg. No. 941658, was at all times relevant herein assigned to the 7th precinct.

8. Defendant Police Officer LAUREN DIAZ, Tax Reg. No. 941658, is being sued in her individual and official capacity.

9. Defendant Detective NICHOLAS ISOLANO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant Detective NICHOLAS ISOLANO was at all times relevant herein assigned to the 7th precinct.

11. Defendant Detective NICHOLAS ISOLANO is being sued in his individual and official capacity.

12. Defendant Sergeant EDNA SOBERAL, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant Sergeant EDNA SOBERAL was at all times relevant herein assigned to the 7th precinct.

14. Defendant Sergeant EDNA SOBERAL is being sued in her individual and official capacity.

15. Defendant Lieutenant CLARENCE DAWSON, Tax Reg. No. 918917, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant Lieutenant CLARENCE DAWSON, Tax Reg. No. 918917, was at all times relevant herein assigned to the 7th precinct.

17. Defendant Lieutenant CLARENCE DAWSON, Tax Reg. No. 918917, is being sued in her individual and official capacity.

18. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

19. Police Officers John Does #1-10 are being sued in their individual and official capacities.

20. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

21. Defendant CITY OF NEW YORK is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

22. Plaintiff, in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim against THE CITY OF NEW YORK, in compliance with Municipal Law Section 50.

23. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

24. On August 1, 2014, defendant City of New York conducted a hearing pursuant to general Municipal Law Section 50-h.

25. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

26. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

27. On March 11, 2013, at approximately 1:00 a.m., plaintiff was lawfully present in the vicinity of 280 East Houston Street, New York, New York, when suddenly the defendant police officers approached plaintiff in an aggressive and discourteous manner.

28. Plaintiff did not feel free to walk away from the officers because of the manner in which they approached him.

29. The defendant police officers lacked reasonable suspicion, probable cause or any legal justification to stop, question, frisk, search, or seize plaintiff.

30. Shortly thereafter, the defendant police officers handcuffed plaintiff and unlawfully arrested him, without probable cause or legal justification.

31. At no point in time did plaintiff commit a crime or violate the law in any way nor did the defendant police officers have an objective reason to believe he committed a crime.

32. The defendant police officers then unlawfully frisked plaintiff, without reasonable suspicion or legal justification. Specifically, the defendant police officers patted plaintiff down over his clothing, touching all areas of his body, and then pulled down his sweatpants and platted plaintiff down all over his body again.

33. Notably, at no time during the unlawful frisk of plaintiff did the defendant police officers recover any weapons, drugs, or contraband.

34. Nevertheless, defendants transported plaintiff to the 7th precinct, where he was unlawfully fingerprinted, photographed, and detained in a holding cell for many hours.

35. At approximately 11:00 a.m. on March 11, 2013, plaintiff was transported to Manhattan Central Booking.

36. The defendant police officers maliciously and without probable cause provided false, misleading, and/or incomplete information about evidence and circumstances leading plaintiff's arrest to the District Attorney's office, which initiated the prosecution against plaintiff without probable cause.

37. At arraignment, plaintiff was charged with Petit Larceny (PL 155.25) and Criminal Possession of Stolen Property in the Fifth Degree (PL 165.40), based upon the defendants' false allegations against him.

38. After approximately 25 hours at Manhattan Central Booking, plaintiff was arraigned on March 12, 2013 at approximately 1:00 a.m. and released on his own recognizance.

39. Plaintiff was forced to make approximately 12 court appearance until March 7, 2014, when all charges brought against him were dismissed and terminated in his favor after plaintiff was acquitted at trial.

40. Some of the defendant police officers observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest and malicious prosecution against plaintiff.

41. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, denial of due process and denial of his right to a fair trial against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth, Fifth and Fourteenth Amendment Rights

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, falsely arrested, falsely imprisoned, maliciously prosecuted, denied his due process rights and denied the right to a fair trial without probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

44. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff

and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

47. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

48. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

51. Defendants lacked probable cause to search plaintiff.

52. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

53. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Denial of Right to Fair Trial

54. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 53 with the same force and effect as if fully set forth herein.

55. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

56. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

57. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

58. In withholding/creating false evidence against plaintiff David Lunas and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

59. As a result of the foregoing, plaintiff David lunas sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of her constitutional rights.

FIFTH CAUSE OF ACTION

Malicious Prosecution

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution, the laws of the State of New York and New York State common law.

62. Defendants commenced and continued a criminal proceeding against plaintiff.

63. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

64. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

65. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

69. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

70. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

71. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

EIGHTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, David Lunas. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

76. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

Failure to Intervene

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

80. Defendants failed to intervene to prevent the unlawful conduct described herein.

81. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

JURY DEMAND

82. Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff David Lunas demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 4, 2015

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Police Officer ROBERT CORRADO, Shield No. 2518, 7th Precinct, 19 ½ Pitt Street,
New York, New York 10007
Police Officer LAUREN DIAZ, Tax Reg. No. 941658, Patrol Borough Bronx, One
Police Plaza, Room 1100, New York, New York 10038
Detective NICHOLAS ISOLANO, 7th Precinct, 19 ½ Pitt Street, New York, New York
10007
Sergeant EDNA SOBERAL, 84th Precinct, 301 Gold Street, Brooklyn, New York 11201
Lieutenant CARLENCE DAWSON, Tax Reg. No. 918917, 7th Precinct, 19 ½ Pitt Street,
New York, New York 10007

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
June 3, 2015

_____/s/_____
STUART E. JACOBS